REV. KELLY WEEPS BITTERLY

Is Moved to Tears While Sutton Speaks in His Behalf

HESS REVIEWS CASE IN DETAIL

Hysham Talks for Three Hours—Aims Shafts of Scathing Denunciations at the Attorney General

(By Special Correspondent)

Red Oak, Tuesday, Sept. 25.—When J. J. Hess for the state, began his argument before the jury at 9 o'clock this morning the court room had been packed to overflowing an hour.

Mr. Hess spoke for two hours and a half and reviewed the evidence in the case in detail, closing with a plea that Kelly was a dangerous man to be allowed his liberty. "He already has the blood of eight persons on his hands, and he has declared he would repeat the crime if given his freedom," said the attorney.

Judge A. L. Sutton spoke two hours for the defense at the afternoon session and was followed by T. J. Hysham, also for the defense, who consumed three hours, during which Attorney General Havner came in for one of the most scathing denunciations ever heard in the Montgomery county court house.

"I would rather be a louse and feed on the carcass of a rotten mongrel than occupy the position of Attorney General Havner," was one of the shafts aimed at the state official, who directed the prosecution of the little preacher.

Judge Sutton spoke with all the emphasis of his nature, and the tears coursed freely down his cheeks as he plead for his client. Kelly, too, was moved deeply and wept bitterly while Attorney Sutton spoke in his behalf.

Attorney Hess' Plea

"On the night of June 9, 1912," began Mr. Hess, "there appeared in Villisca a human degenerate, who entered the home of Joe Moore and took the lives of every living person in the house.

"We know the little children who died by the hand of the fiendish assassin were at church that night. We do not know the hour of the tragedy the physicians have said the vicitims had been dead about eight hours when their bodies were discovered. It appears to be certain that the murderer went in through one of the doors.

"Before the hell-governed hand began to weild the ax which crushed out the brains of eight sleeping persons covering had been hung before all of the windows both upstairs and down. Even the mirrors in the house had been draped to shut out the view of human butchery.

"The bodies were found in ordinary sleeping positions with the exception of Lena Stillinger and one of the little boys. The whole situation in that house of death the next morning bespoke the work of a mind and of a hand possessed by a moral degenerate and a sexual pervert. Everything connected with the crime indicates that it was not the act of a normal mind.

"I ask you gentlemen of the jury, is there anything behind this awful tragedy to suggest a motive back of which is to be found a rational mind?

"Then we must seek a man who is a moral degenerate or a sexual pervert—a man with a diseased mind. If the person who committed this deed of death had been poisoned against Joe Moore or Mrs. Moore, would he have dashed out the brains of these innocent children?

"Lena Stillinger, the oldest female child in the house, who was just budding into charming womanhood, was pulled twenty inches down from the head of the bed. There was a smear of blood on one of her legs. The body was lying on the edge of the bed and the position of the limbs plainly indicated the work of a pervert. It is true the physicians have told you there were no traces of sexual violations to be found in an examination of the bodies. The sexual pervert goes about his hellish purpose in another way. He seeks to satisfy his unnatural lust in a different manner.

"We begin our search for the man who fits the place. And what do we find?

"We find a man named Kelly.

"Gentlemen of the jury, I am not going to say a single unkind word about Kelly. We find that Kelly went to the country that Sunday afternoon and preached two sermons. He arrived at the home of the Rev. W. J. Ewing in Villisca at 6:30 o'clock. He attended the childrens' day exercises that night at the Presbyterian church in Villisca.

"Again and again this man Kelly has said 'Children always did bother me.' From the days when childish eyes looked their innocence at Kelly while attending divine services in his father's house of worship, children bothered [illegible] Repeatedly and over and [illegible] complained that children [illegible]

"And in this connection Kelly speaks of a discourse he was preparing on the subject 'Slay Utterly.' He tells us that the same text was discussed with the Rev. Ewing in the home of the Villisca minister on that fatal night.

"Kelly said he went to bed between 11 and 11:30 o'clock. He could not sleep. He got up and went out on the street. He walked to the Presbyterian church and the words 'Slay Utterly' continually sounded in his ears. This single thought was burned in the man's brain when he retired that night. He began to hear voices. Physicians tell us these are symptoms of paranoia. We do not attempt to say that this is untrue, gentlemen of the jury.

"We are going to ask you in the light of the facts in this case, what should be done with this man who faces you today on a charge of bloody murder.

"Kelly sees a shadow and follows it. Down by the Joe Moore house he goes. He finds an ax on a rubbish pile in the rear of the premises. He follows the shadow in through a door to the house and when he ascends stairs he thinks he is on Jacob's ladder, according to his own confession. The man himself told this story more than six times.

"He then went into the room where the parents were sleeping, and then into the room where the little Moore children were sleeping. He goes downstairs when six souls, without a moment's notice, had been plunged into eternity. Downstairs he completes the work of human butchery, sending the ax crashing against the heads of the two Stillinger girls, crushing their skulls like egg shells and dashing out their brains.

"Take the story of what Kelly has said to other people and you have found the human animal and sexual pervert whose hand committed this heart sickening crime.

"We find him preaching a sermon one day, and the next day we find him trying to get his young woman stenographer to strip off her clothes. Again we find him writing letters to girls urging them to enter his employ and agree to strip off naked while they take his dictation. I tell you, gentlemen of the jury, this is the character of the man whom you are asked to turn loose in this community.

"Kelly went to the 5:19 train in Villisca and rode to Hastings and thence to Macedonia. On the train from Hastings to Macedonia Mr. and Mrs. William Simons heard him talking about the murders that had been committed in Villisca. This train arrived in Macedonia at 7:18 o'clock in the morning and it did not become known in Villisca that the crime had been committed until 8:30 o'clock in the morning. It was on June 10, 1912, the dead bodies were discovered in the Moore residence in Villisca, and it was June 10, 1912, that Kelly was talking of the crime on the train. 'I have got to get to work on it,' Kelly was heard to say to the person to whom he was talking. Gentlemen you have got the train sheets and the records of the station agent at Sidney showing the time of the arrival of the train at Macedonia and the sale of tickets from Sidney to Carson, corroborating positively the testimony of Mr. and Mrs. Simons.

"Gentlemen of the jury, if you did not have another word of testimony in this case, this would be sufficient on which to base a verdict of guilty. It proves beyond a shadow of doubt that Kelly killed the Joe Moore family and the two Stillinger girls. Who but Kelly could have known an hour before any one else miles from the scene of the tragedy that these people had been murdered. No person knew of it in Villisca at the time this man was talking of it on the train. Can you disregard this evidence, gentlemen? If you can, there is no occasion for courts of justice. Kelly's counsel have admitted that he was on the train. Can there be any doubt about where the guilt lies?

"And this is not all. When this man got to Macedonia he began talking about the murders at 7:30 o'clock. Mr. Frich testified to this. Kelly said the victims had been killed with an ax. Did any living soul know this at this time but Kelly?

"Again a few minutes after this Kelly said to Sam Barnett 'A whole family had been murdered in Villisca.'

"The defense has brought here Conductor Pontie, who was on the train that morning, to say that he did not hear Kelly talking about the murder on the train. You know, gentlemen of the jury, the conductor, as he told you himself, was on the front end of the train and was not in position to hear the conversation.

"At 11 o'clock Kelly is talking to John Anthony in Macedonia. He told Anthony that a big murder had been committed in Villisca. Even at 11 o'clock it was not generally known in Macedonia.

"The defense tells you that the first Kelly knew of the murder was through a letter written to him by the Rev. Ewing. Mrs. Kelly testified to this and says the letter was read by her husband and herself together the afternoon of June 10, 1912.

"Gentlemen of the jury, I have nothing to say in an unkind way about Mrs. Kelly. She is this man's wife and I believe she will do all within her power to help him.

"Kelly talked with Mrs. W. C. Miller in Macedonia, and he told her the man who committed the murders was disturbed in his work when he heard two persons passing the house, that he went out on the porch and after the couple had passed he returned to the house and continued until every one in the house had been killed. I want to know how Kelly knew this. He said the victims were stunned first and afterwards beaten with the ax. How could any one but Kelly know this?"

Mr. Hess here exhibited the ax and called the attention of the jury to the blood stains which still are plainly to be seen on the tool.

"Next we come to the bloody shirt. Now I want to ask you how do you suppose a man would go out to take a walk after midnight in order to cool off? Don't you think he would go out with simply his trousers and shirt on? Of course he did not wear his coat and collar in which to cool off. You will remember Kelly said he was hot; that his head was hot. We find that Kelly is in Omaha the first Wednesday after the murders. We have established this fact by a postal card which the man wrote from that city June 12, 1912, to Mr. Miller in Macedonia. Kelly told five different people that he had taken the shirt to a laundry. The girl at the Council Bluffs laundry where the garment was washed testified that the shirt had been washed there and that it had been received with what looked like blood stains on it and it appeared that some one had made an attempt to remove the stains. The laundry agent at Macedonia testified to the fact that the shirt had been delivered to the Rev. Kelly.

"We find Kelly saying in Carroll that there was a laundry girl at Council Bluffs who was giving him a great deal of trouble about a shirt he had taken to the laundry to be washed shortly after the Villisca ax murders. Kelly said that the blood came from a nose bleed, and on another occasion we find him explaining that the blood stains got on the shirt from a wound he had inflicted on himself while shaving.

"Gentlemen, if you had no other evidence against this man but the bloody shirt, it would be sufficient evidence on which to convict.

"You have heard the saying that murder will out. As Kelly traveled from place to place he talked about this awful crime. We find him talking to a minister on a train about it; we find him again talking about it in Winner, S. D.

"Mr. Mitchell's reference to Kelly as the man of God did not come with very good grace. While in Winner we find this man of God preaching on Sunday and conducting a correspondence school in an attempt to get girls to come to his office and pose in the nude while he dictated a book. We find him saying in Sioux Falls 'I did kill them, but how did they find it out.' And this is the man of God that Mr. Mitchell and Judge Sutton speak of.

"This man is a moral degenerate and a sexual pervert. He repeated these offenses and would repeat murder if he is given his liberty, according to his own confession. Turn him loose and he will murder again. You, gentlemen of the jury, who have daughters, sisters and wives, this is the character of man they are asking you to turn loose."

Mr. Hess here read the confession Kelly dictated and swore to August 31, 1917, in the sheriff's office at Logan, Harrison county, Ia.

"Every word of this confession is true and proven by the testimony in the case," continued Mr. Hess. "Mr. Mitchell declared in his opening statement that he would show that the statement was forced from Kelly and cruel methods were used to obtain the confession. I leave it to you gentlemen, has he done it? Fifty-one times during the conversation which was held in the sheriff's office at Logan before the statement was dictated Kelly was urged to tell the truth. Repeatedly Kelly has begged the authorities not to turn him loose. 'I may do it again if you do,' he said. And yet the counsel for the defense ask you to give this man his liberty."

Mr. Hess here reviewed the testimony submitted by the witnesses for the defense. He devoted particular attention to the witness Ed Landers. "Landers is mistaken about the time he went home; that's all there is to his testimony," said the attorney. "He was contradicted by Mr. Glackemeyer, A. W. McCoy, J. H. Bartlett, J. T. Posten, his own brother-in-law. He has contradicted himself, according to the records of the coroner's jury. Landers said he saw Albert Jones going into the Moore house about 8:30 o'clck the night of the murder. Before the coroner's jury he said he passed the Moore residence at 11 o'clock and everything there was quiet.

"I don't want a man like Kelly in the community in which I have to live.

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